

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Joint Stipulated Facts and Contested Issues Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

United States District Court for the Western District of North Carolina

Civil Action No. SYN-WDNC-24-CV-0520

Filed September 19, 2025

Blue Ember and Granite Heron submit these stipulations for use at the October 2025 jury trial. An agreed fact may be accepted without additional proof, but the agreement does not resolve a legal consequence beyond its words. A listed contested issue identifies a genuine dispute and is not evidence.

The parties distinguish underlying transaction dates from the dates copies entered the civil record. Master Logistics Services Agreement BE-GHL-MLS-2023-1101 was executed and effective November 1, 2023. Quality Agreement QA-BE-GHL-017 was executed January 15, 2024. Release Specification BE214-RS-03 Revision 3 became effective August 1. Statement of Work SOW-BE214-VAL-04 and purchase order BE-PO-240819-2147 were executed or issued August 19. Rate Confirmation RC-240912-087 was issued September 11.

Later attachment of those instruments to pleadings did not change their original dates. The jury will receive the documents in an organized exhibit set without civil-record pagination printed inside the sources.

That organizing format does not alter authenticity, admissibility, or any disputed meaning.

Parties, facilities, and assigned people

Blue Ember is a Delaware limited-liability company headquartered at 1847 Cinder Ridge Parkway, Asheville, North Carolina. Granite Heron is a Georgia corporation that operates a controlled-transport facility at 802 Granite Heron Way, Fletcher, North Carolina. Jurisdiction and venue are not disputed.

Solstice Gate Analytics at 61 Pelham Lab Way, Greenville, South Carolina, produced and tendered the validation lot. Aurora Quay Manufacturing Center at 509 Harbor Science Road, Raleigh, North Carolina, was Blue Ember's established replacement site. Cobalt Finch Bioprocessing at 720 Meridian Commons Drive, Durham, North Carolina, offered earlier capacity.

Dr. Mira Solis represents Blue Ember on organizational subjects. Adrian Locke represents Granite Heron. Tess Holloway managed transport operations at Fletcher. Dr. Nia Calder speaks for Cobalt Finch concerning its offer and capability. Kellan Brooks and Dr. Elodie Park are the parties' retained economic experts.

Maya Holt and Jonas Bell represent Blue Ember. Eli Mercer and Tara Webb represent Granite Heron. Judge Miriam D. Carver presides, and Avery Thorn serves as the exercise courtroom clerk. These are fictional participants; the stipulation supplies no real contact information.

Product and shipment documents

BE-214 is a fictional temperature-sensitive development biologic. Lot BE214-VL-2409A was intended for process-validation use and was not an approved commercial medicine. Certificate of conformance COC-BE214-091224 accompanied the lot at origin.

The accepted transport band was minus eighty through minus sixty degrees Celsius, with a nominal trailer target of minus seventy. Revision 3 contained no authorized duration outside that range for the validation lot. Blue Ember retained final quality-disposition authority, while Granite Heron controlled carriage and staging during custody.

The planned equipment was tractor GH-4821 and trailer TR-7714. CryoTrace CTX-9 serial CTX9-44721 was the designated payload monitor. The parties agree that the readable logger report is traceable to the preserved source export. They do not agree that the device itself determines biological effect or legal causation.

The integrated writings require consideration of shipment-specific quality controls and general commercial provisions. The parties disagree about the application of damages limitations, declared value, foreseeability, and mitigation, but not about the authenticity of the signed instruments.

September 12 transport chronology

Granite Heron signed custody at 11:20 Eastern Daylight Time, and tractor GH-4821 departed Solstice Gate Analytics at 11:47. The vehicle reached the Fletcher facility at 12:46 and was positioned at bay F-4 at 12:49.

A standby cable was seated at 12:52, but the electrical source was not energized. Tractor power was turned off at approximately 12:53 without documented positive verification. The CTX-9 crossed above minus sixty at 13:08. A telemetry exception at 13:10 routed to an inactive archive queue rather than the intended active response path.

A yard check found the refrigeration controller dark at 13:36. The device recorded a maximum of minus 42.8 degrees at 13:37. Tractor power and refrigeration restarted at 13:38. Holloway received notice at 13:41 and reached the bay near 13:45. Blue Ember contact attempts occurred at 13:49 and 13:58, with receiving personnel reached at 14:07.

The logger returned within range at 14:02. The load left Fletcher at 14:18 and was delivered in Asheville at 15:26. The total out-of-range interval was fifty-four minutes.

Quarantine, testing, and disposition

Blue Ember took physical receipt at 15:26, kept the sealed lot frozen, downloaded the monitoring record, and opened deviation BE-QA-DEV-2024-0912. A receiving signature did not constitute product release. Granite Heron later supplied operational records and an investigation.

Blue Ember rejected the validation lot on September 16. Confirmatory testing did not show that every vial lacked biological activity. The parties agree that retained measured activity and compliance with a validation-custody criterion are different subjects.

Blue Ember contends the excursion and resulting uncertainty made the lot unusable for its intended validation purpose. Granite Heron disputes that this quality decision proves the full causal and economic consequences claimed. It does not contend that its personnel could overrule Blue Ember's quality organization.

The lot remained segregated during investigation and was later destroyed through controlled procedures. Blue Ember did not use it as conforming validation material or sell it. The parties disagree about possible research use, salvage value, the reasonableness of complete rejection, and the expense properly attributable to replacement.

Cobalt Finch and Aurora Quay

Cobalt Finch sent Blue Ember a written proposal October 2, 2024 and held a Durham production slot through 17:00 on October 4. The proposed campaign start was December 2. Cobalt Finch had relevant general capability but had not completed BE-214-specific transfer or qualification.

The preliminary plan contemplated an October 7 kickoff, focused review, site work during October 14 and 15, technical tasks into November, an engineering confirmation during November 11 through 15, and a readiness decision by November 22. Initial campaign completion was targeted near December 20, followed by testing and disposition.

The estimated incremental cost was 300,000 dollars, subject to confirmed scope. The offer did not guarantee successful manufacture, final release, regulatory outcome, or a particular damages saving. It provided staged readiness conditions and potential cancellation exposure.

Blue Ember declined before the deadline and retained its established Aurora Quay path. The Aurora Quay replacement campaign began March 3, 2025. The parties disagree whether a reasonable developer would have secured Cobalt Finch, how likely the accelerated path was to succeed, and how much delay it would have avoided.

Claimed loss and mitigation arithmetic

Blue Ember's asserted gross loss is 4.2 million dollars. Its direct subtotal is 2.2 million dollars, comprising 1.35 million dollars attributed to the rejected validation lot and 850,000 dollars attributed to replacement production and associated incremental work. Its remaining 2 million dollars is a bounded delay category.

Granite Heron disputes the foundation and recoverability of the gross computation. For its affirmative mitigation defense, it conditionally starts with Blue Ember's model and asserts that Cobalt Finch would have avoided 1.8 million dollars of delay. It subtracts 300,000 dollars of incremental transfer and qualification cost to reach a 1.5 million dollar net reduction.

Applying the full proposed mitigation deduction to the gross request produces 2.7 million dollars. Applying a 300,000-dollar net deduction produces 3.9 million. Those are arithmetic scenarios, not stipulated outcomes.

The parties agree that a mitigation reduction, if any, concerns delay and should not revive the rejected lot. The jury must avoid counting the same expense, credit, alternative cost, or avoided loss twice. No insurance payment duplicating a claimed item had been identified before this filing.

Matters remaining for decision and signatures

The disputed questions include material breach, causal relationship between the excursion and validation rejection, recoverable direct loss, certainty and foreseeability of delay, application of contractual limitations, reasonableness of Blue Ember's response, feasibility of Cobalt Finch, and the net amount of any mitigation deduction.

Expert agreement on arithmetic does not establish the underlying premise. Brooks supports the 4.2 million gross model and rejects a mandatory 1.5 million reduction. Park concludes that the earlier alternative would have reduced the supported loss by that net amount. Both opinions remain subject to examination and the Court's instructions.

The stipulation does not create a concession concerning any trial motion or later procedural request. Such matters depend solely on what is actually said and ruled upon during the trial. Nothing here adds an unstated ground to a motion.

Signed September 19, 2025.

Holt Bell PLLC

Maya Holt and Jonas Bell for Blue Ember Biologics, LLC

Mercer Webb PLLC

Eli Mercer and Tara Webb for Granite Heron Logistics, Inc.

The parties certify that the document states their factual agreements and disputes accurately for this fictional exercise.